

# MUTUAL NON-DISCLOSURE AGREEMENT

South African template — governed by the laws of the Republic of South Africa

**IMPORTANT — TEMPLATE DISCLAIMER.** This is a generic drafting starter prepared as an educational reference only. It is not legal advice and does not reflect any specific transaction. South African corporate law is governed by the Companies Act 71 of 2008, the Companies Regulations 2011, the common law, and a range of sector-specific statutes. Before signing any agreement, have a qualified South African attorney review and adapt the document to your transaction, counterpart, regulatory context, and commercial terms. Bracketed placeholders ([like this]) must be filled in or removed. Blank signature blocks, schedules, and annexures must be completed. No warranty is given as to fitness for any particular purpose.

## Parties

(1) [P/A], a company incorporated in the Republic of South Africa, with its registered address at [\_\_\_\_\_] (“**Party A**”); and

(2) [P/B], a company incorporated in the Republic of South Africa, with its registered address at [\_\_\_\_\_] (“**Party B**”),

each a “**Party**” and together the “**Parties**”.

## Background

A. The Parties wish to discuss [describe the purpose — e.g. a potential acquisition, joint venture, commercial supply arrangement] (the “**Purpose**”).

B. In the course of those discussions each Party may disclose confidential information to the other. The Parties wish to record the terms on which such information will be protected.

## 1. Definitions

1.1 “**Confidential Information**” means all information, in whatever form, disclosed by one Party (the “**Disclosing Party**”) to the other (the “**Receiving Party**”) before, on or after the Effective Date in connection with the Purpose, including but not limited to business plans, financial information, customer and supplier data, technical information, software, know-how, personnel information, and the existence and contents of this Agreement. Information is Confidential Information whether or not marked as such.

1.2 “**Personal Information**” bears the meaning given in the Protection of Personal Information Act 4 of 2013 (“**POPIA**”).

## 2. Obligations of the Receiving Party

2.1 The Receiving Party shall:

- (a) treat all Confidential Information as strictly confidential;
- (b) use the Confidential Information only for the Purpose;
- (c) not disclose any Confidential Information to any third party except to its Representatives on a strict need-to-know basis;
- (d) apply the same degree of care to the Confidential Information as it applies to its own confidential information of like importance, and in any event not less than a reasonable standard of care; and
- (e) procure that each of its Representatives complies with obligations equivalent to those in this clause 2.

2.2 “**Representatives**” means, in relation to a Party, its directors, officers, employees, professional advisers, auditors, financiers, and duly authorised agents.

### 3. Exceptions

The obligations in clause 2 do not apply to information that: (a) is or becomes publicly known other than through a breach of this Agreement; (b) was lawfully in the Receiving Party’s possession, free of confidentiality obligations, before receipt from the Disclosing Party; (c) is independently developed by the Receiving Party without reference to the Confidential Information; or (d) is required to be disclosed by law, by a court of competent jurisdiction, or by a regulatory authority, provided that (to the extent lawful) the Receiving Party gives the Disclosing Party prompt written notice to enable it to seek protective relief.

### 4. POPIA compliance

Where Confidential Information includes Personal Information, each Party shall process it lawfully and solely for the Purpose, in compliance with POPIA. Each Party warrants that it has implemented appropriate technical and organisational measures to secure Personal Information against loss, damage or unauthorised access.

### 5. Return or destruction

On written request from the Disclosing Party, or on termination of discussions regarding the Purpose, the Receiving Party shall promptly return or securely destroy all Confidential Information in its possession, save that it may retain one copy solely for audit, regulatory or legal-hold purposes, which copy shall remain subject to this Agreement.

### 6. No licence or representation

No right, licence or interest in any intellectual property is granted under this Agreement. The Disclosing Party gives no warranty as to the accuracy or completeness of the Confidential Information, and the Receiving Party relies on it at its own risk.

### 7. Duration

This Agreement commences on the Effective Date and the confidentiality obligations in it shall continue for a period of [three (3) / five (5)] years from the Effective Date, notwithstanding termination of discussions regarding the Purpose.

### 8. Remedies

The Parties acknowledge that damages alone may not be an adequate remedy for breach of this Agreement, and that a Disclosing Party shall be entitled to seek urgent interdictory relief in addition to any other available remedy.

### 9. General

9.1 **Governing law:** this Agreement is governed by the laws of the Republic of South Africa.

9.2 **Jurisdiction:** the Parties submit to the non-exclusive jurisdiction of the High Court of South Africa, [Gauteng Division, Johannesburg].

9.3 **Whole agreement:** this document contains the whole agreement between the Parties on its subject matter.

9.4 **No variation:** no variation of this Agreement is valid unless reduced to writing and signed by or on behalf of both Parties.

9.5 **No cession:** neither Party may cede or assign any of its rights or delegate any of its obligations without the prior written consent of the other Party.

9.6 **Counterparts & electronic signature:** this Agreement may be signed in counterparts and by electronic signature, each of which is deemed an original.

Signed by the Parties on the dates indicated below.

**SIGNED** at \_\_\_\_\_ on this \_\_\_\_\_ day of \_\_\_\_\_ 20\_\_\_\_.

\_\_\_\_\_ for and on behalf of  
[PARTY A FULL NAME]

Name: \_\_\_\_\_

Capacity: \_\_\_\_\_

Duly authorised

\_\_\_\_\_ Witness

**SIGNED** at \_\_\_\_\_ on this \_\_\_\_\_ day of \_\_\_\_\_ 20\_\_\_\_.

\_\_\_\_\_ for and on behalf of  
[PARTY B FULL NAME]

Name: \_\_\_\_\_

Capacity: \_\_\_\_\_

Duly authorised

\_\_\_\_\_ Witness